

Court No. - 29

Case :- WRIT - C No. - 22693 of 2019

Petitioner :- Sri Suresh Agarwal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Santosh Kumar Mishra

Counsel for Respondent :- C.S.C., Suman Kumar Yadav

Hon'ble Pankaj Mithal, J.

Hon'ble Saral Srivastava, J.

Heard Sri Santosh Kumar Mishra, learned counsel for the petitioner and Sri Suman Kumar Yadav, learned counsel for respondents no. 2 and 3.

Petitioner has filed this petition so as to challenge the provisional assessment of electricity charges vide Annexure- 1 to the writ petition.

Against the provisional assessment, petitioner has remedy of filing objection under Clause 6.8 of the Uttar Pradesh Electricity Supply Code, 2005 read with Section 126 of the Electricity Act, 2003 before the Executive Engineer.

In view of the above alternative remedy available to the petitioner, we do not deem it necessary to exercise our discretionary jurisdiction in the matter and, accordingly, the petition is **dismissed** with liberty to the petitioner to avail alternate remedy. It goes without saying that the petitioner may make appropriate application to the Executive Engineer for the restoration of the electricity which will also be considered in accordance with law.

Order Date :- 19.7.2019

Ishan